

WOML — Word of Mouth Leads

BUSINESS AGREEMENT & TERMS OF SERVICE

Effective Date: Upon Account Creation on womleads.com

This Business Agreement ("Agreement") governs the access to and use of the WOML platform by businesses ("you" or "the Business") that create an account on womleads.com. By completing account creation and configuration, you agree to all terms set forth below. Please read carefully before proceeding.

WOML LLC (Pennsylvania) operates a private-channel lead generation platform. WOML is a technology intermediary — not an insurance agency, broker, or licensed insurance professional. WOML facilitates the connection between your business and lead providers you invite, processes payments via Stripe Connect, and provides the platform infrastructure. The underlying transaction, lead quality determination, and business relationship with your providers remain your responsibility.

1. Platform Access & Channel Configuration

1.1 Eligibility & Account Creation

- You must be a legally operating business or entity authorized to conduct operations in your jurisdiction.
- You must provide accurate business information during onboarding. WOML reserves the right to verify your identity and reject or suspend accounts at its sole discretion.
- Account access is non-transferable. You may not share, sell, or assign your WOML account to any third party.

1.2 Channel Configuration

Upon account creation, you configure your private channel by defining:

- Lead criteria — the required and optional fields that providers must complete when submitting a lead.
- Payout rate — the amount you agree to pay per accepted lead, displayed to providers during their onboarding.
- Payment timing — per lead, weekly, bi-weekly, or monthly, as selected by you.
- Weekly and monthly lead caps — the maximum number of leads you will accept per period.
- Termination notice period — which may be zero days, at your sole discretion, and is communicated to providers during their onboarding.

Channel configuration is your binding commitment to providers you invite. Payout rates and lead criteria presented to providers at onboarding form part of the Deal Terms that providers accept. Changes to channel configuration apply prospectively and do not retroactively affect leads already submitted or payments already earned.

1.3 Provider Invitations

- You invite lead providers to your channel via a unique, account-scoped invite link generated by the platform.
- Providers who register through your invite link are scoped exclusively to your channel. They cannot see, access, or submit leads to any other business on the platform.
- You are responsible for the integrity of your invite links. Do not share invite links publicly or with parties you do not intend to onboard as providers.
- WOML does not screen, vet, or guarantee the performance of providers you invite. Provider quality and suitability are your responsibility.

1.4 Private Channel Guarantee

WOML commits to maintaining complete data isolation between all business accounts on the platform. No provider connected to your channel can see, access, or submit leads to another business without a separate and independent invitation from that business. Your lead data, provider network, channel configuration, and payout structure are fully confidential and inaccessible to any other business on the platform. This private channel architecture is a core contractual obligation of WOML LLC.

In the event of a technical failure that causes a data isolation breach, WOML's liability is limited as described in Section 7. WOML will notify affected businesses promptly and take immediate corrective action.

2. Fees, Payment & Subscription

2.1 Platform Fee Structure

WOML charges a platform fee on each lead transaction. The fee structure may operate as one of the following models, as configured by WOML LLC:

- Flat fee — a fixed dollar amount deducted from each lead transaction.
- Percentage-based spread — a percentage of the lead payout value deducted per transaction.
- Hybrid — a combination of flat fee and percentage spread.

The applicable fee structure and rate for your account is disclosed in your account settings and Deal Terms. WOML reserves the right to modify the fee structure upon 30 days written notice to you. Continued use of the platform after the notice period constitutes acceptance of the revised fee structure.

2.2 Payment Processing

- All payments are processed via Stripe Connect. By creating an account, you authorize WOML to charge your linked payment method for lead transactions in accordance with your channel's payout rate and payment timing.
- You are responsible for maintaining a valid, funded payment method on file. Failed payments may result in suspension of your account and lead channel activity until resolved.
- WOML does not hold, pool, or custody funds independently. Stripe Connect handles all payment processing, splits, and disbursements as a licensed payment infrastructure provider.
- Disputes regarding charges must be raised with WOML directly at support@womleads.com before initiating any chargeback with your payment provider. Unauthorized chargebacks may result in

account suspension.

2.3 Subscription Fee — Future Activation

WOML currently operates on a transaction-based fee model. WOML LLC reserves the right to introduce a recurring monthly software subscription fee at a date of its choosing as the platform matures. By creating an account, you acknowledge and accept this possibility as a condition of platform access.

Before any subscription fee takes effect, WOML will provide no less than 30 days advance written notice to your registered email address. The notice will specify the subscription amount, billing cycle, and effective date. Continued use of the platform after the effective date constitutes acceptance of the subscription fee. If you do not wish to accept the subscription fee, you may close your account prior to the effective date with no penalty.

Accepting these terms does not mean a subscription fee is imminent — only that WOML has reserved the right to introduce one. You will always receive 30 days notice before any charge takes effect.

2.4 Taxes

- You are responsible for all taxes, duties, and levies applicable to your business arising from your use of the WOML platform.
- WOML is not responsible for tax compliance on your behalf except as required by applicable law.

3. Lead Quality & Disputes

3.1 Lead Acceptance

- Leads submitted by providers through your channel are presented to you for review upon submission.
- A lead is considered accepted and payable if it is not disputed within 5 business days of submission.
- WOML processes payment to the provider upon acceptance or after the dispute window has passed without action.

3.2 Lead Dispute Process

- You may dispute a lead within 5 business days of submission on the basis of quality violations, including: duplicate submissions, false or fabricated information, leads that do not meet your stated criteria, or leads where the individual had no genuine interest in your services.
- Disputes must be submitted through the WOML platform or by contacting support@womleads.com with the lead ID and reason for dispute.
- WOML LLC makes the final determination on all disputes. WOML's decision is binding on both parties.
- Leads accepted without dispute after 5 business days are considered valid and payable regardless of subsequent quality concerns.

3.3 Duplicate Leads

- A duplicate lead is defined as any individual who has been previously submitted through the WOML platform, regardless of timing. The same individual may never be submitted for payment more than once across the lifetime of the platform.

- Businesses may flag duplicate submissions through the dispute process in Section 3.2. Automated duplicate detection is a planned platform feature. Until automated enforcement is active, duplicate lead disputes must be raised within the 5-day dispute window.
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4. Data, Privacy & Platform Intelligence

4.1 Data You Submit

In the course of using WOML, you and your providers will submit personal data belonging to lead subjects, including names, contact information, and any additional fields you define in your Lead Criteria. You represent and warrant that:

- Your collection and submission of lead subject data complies with all applicable privacy laws and regulations in your jurisdiction.
- You have a lawful basis for collecting and processing the personal data of individuals whose information is submitted through your channel.
- You will not submit data collected through deceptive, coercive, or unlawful means.

4.2 Data Ownership

All transactional data, lead submission records, behavioral analytics, and platform activity data generated through your use of WOML — including channel performance metrics, acceptance rates, payout histories, and provider activity — is the sole property of WOML LLC. You retain ownership of your business's personal account information, but you do not retain rights to the transactional and operational data generated through platform use.

4.3 Platform Intelligence & Commercial Use

WOML distinguishes between two categories of data: (1) your business's personal and account information, which WOML does not sell to third parties; and (2) platform intelligence — aggregated, anonymized, and de-identified data derived from activity across the platform — which WOML owns and may commercialize.

Platform intelligence includes lead volume trends, acceptance rates, dispute rates, payout patterns, provider activity metrics, and platform usage behavior — compiled across all users in a form that cannot identify any individual business, provider, or lead subject. By using WOML, you grant WOML LLC a perpetual, royalty-free license to collect, process, and commercialize this platform intelligence, including its potential licensing or sale to third parties.

Businesses who wish to opt out of aggregated platform analytics may contact support@womleads.com. Opting out does not affect your ability to use the platform or your payment obligations.

4.4 Lead Subject Privacy

Lead subject personal data submitted through your channel is shared exclusively with your business for the purpose of lead fulfillment. WOML does not share individual lead subject data with any other business on the platform or with third parties, except as required by applicable law or legal process.

5. Confidentiality

In connection with your use of the WOML platform, you may become aware of non-public information about WOML LLC's business operations, platform architecture, fee structures, pricing, and proprietary processes ("Confidential Information"). You agree to keep all Confidential Information strictly confidential and not to disclose it to any third party without the prior written consent of WOML LLC. This obligation survives termination of this Agreement.

You may not disclose the identity of other businesses on the WOML platform, the details of WOML's private channel architecture, or any information about how the platform operates to any competing platform, service, or third party. Breach of this section entitles WOML LLC to seek immediate injunctive relief in addition to any other available remedies.

6. Acceptable Use

6.1 Permitted Use

- You may use WOML solely for lawful lead generation and management purposes within your authorized business operations.
- You may not use WOML to collect, process, or transmit lead data for any illegal purpose or in violation of applicable law.
- You may not use WOML in a manner that violates any insurance law, consumer protection regulation, or data privacy law applicable to your jurisdiction.

6.2 Prohibited Conduct

- You may not reverse engineer, scrape, or attempt to access any portion of the WOML platform outside your authorized channel.
- You may not attempt to identify, contact, or establish relationships with providers connected to other businesses on the platform.
- You may not use the platform to facilitate fraud, money laundering, or any other unlawful financial activity.
- You may not misrepresent your business, your lead criteria, or your payout terms to providers.

7. Limitation of Liability

WOML is a technology platform and marketplace intermediary. WOML is not a party to the underlying transaction between your business and your lead providers. WOML does not guarantee the quality, accuracy, or convertibility of any lead submitted through the platform.

To the fullest extent permitted by applicable law, WOML LLC expressly excludes all liability for: loss of profits, loss of business, loss of revenue, loss of anticipated savings, or any indirect, incidental, special, consequential, or punitive damages arising out of or relating to your use of the platform — regardless of whether WOML was advised of the possibility of such damages.

Where liability cannot be fully excluded by law, WOML LLC's total aggregate liability to you for any claim arising solely from WOML's own platform negligence shall not exceed the total platform fees paid by you to WOML in the 30 days immediately preceding the event giving rise to the claim. This cap does not apply to your payment obligations for accepted leads.

WOML is not liable for lead quality disputes between you and your providers, Stripe payment processing delays or failures, provider conduct or misrepresentation, or any business outcome resulting from leads received through the platform.

8. Term, Suspension & Termination

8.1 Term

This Agreement begins upon account creation and continues until terminated by either party.

8.2 Termination by You

- You may close your account at any time by contacting support@womleads.com.
- Closing your account does not relieve you of payment obligations for leads accepted prior to the termination date.
- Upon termination, your provider invite links are deactivated and your channel is closed. Providers previously connected to your channel will no longer be able to submit leads.

8.3 Suspension or Termination by WOML

- WOML LLC may suspend or permanently terminate your account at its sole discretion for: violation of these terms, non-payment, fraudulent activity, or any conduct that WOML determines to be harmful to the platform or its users.
- WOML will provide reasonable notice of suspension where possible, except where immediate action is required to protect platform integrity or other users.

8.4 Effect of Termination

- Outstanding payment obligations for accepted leads survive termination and remain enforceable.
- Sections covering confidentiality, data ownership, limitation of liability, and dispute resolution survive termination indefinitely.

9. Dispute Resolution & Arbitration

9.1 Informal Resolution

Before initiating any formal proceeding, you agree to contact WOML at support@womleads.com and describe your dispute in reasonable detail. WOML will respond within 10 business days. Both parties agree to attempt good-faith resolution for at least 30 days before proceeding to arbitration.

9.2 Binding Arbitration

Any dispute, claim, or controversy arising out of or relating to this Agreement that cannot be resolved informally shall be resolved through final, binding arbitration administered by the American Arbitration Association ("AAA") under its Commercial Arbitration Rules. The arbitration shall take place in Northampton County, Pennsylvania. A single arbitrator shall be appointed in accordance with the AAA Commercial Arbitration Rules. The arbitrator's decision shall be final and binding and may be entered as a judgment in any court of competent jurisdiction.

9.3 Class Action Waiver

YOU AND WOML AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, OR REPRESENTATIVE ACTION. Unless both parties agree otherwise in writing, the arbitrator may not consolidate more than one party's claims and may not otherwise preside over any form of representative or class proceeding. **ALL DISPUTES MUST BE BROUGHT IN YOUR INDIVIDUAL CAPACITY ONLY.**

9.4 Governing Law & Venue

This Agreement is governed by the laws of the Commonwealth of Pennsylvania, without regard to conflict-of-law principles. For any dispute not subject to mandatory arbitration, the exclusive venue shall be the Court of Common Pleas of Northampton County, Pennsylvania, or the United States District Court for the Eastern District of Pennsylvania.

10. Intellectual Property & Platform License

10.1 Platform Ownership

WOML LLC retains sole and exclusive ownership of the WOML platform, including all code, design, workflows, interfaces, algorithms, and proprietary systems. Nothing in this Agreement transfers any intellectual property rights to you. All platform content, trademarks, trade names, logos, and service marks displayed on or through the platform are the exclusive property of WOML LLC.

10.2 Limited License

Subject to your compliance with this Agreement, WOML grants you a limited, non-exclusive, non-transferable, revocable license to access and use the platform solely for lawful lead generation and management within your authorized business operations. This license does not include the right to sublicense, copy, modify, distribute, sell, or create derivative works from any part of the platform. Any use of the platform beyond the scope of this license automatically terminates your rights and may subject you to legal liability.

10.3 Feedback

If you provide WOML with feedback, suggestions, or ideas regarding the platform, you grant WOML LLC a perpetual, irrevocable, worldwide, royalty-free license to use, incorporate, and commercialize that feedback without restriction or compensation to you.

11. Non-Solicitation & Non-Circumvention

The WOML platform creates value by connecting Businesses and Providers within a trusted, managed marketplace. To protect the integrity of that marketplace and WOML's investment in building it:

- During the term of this Agreement and for 18 months following termination or expiration for any reason, you agree not to directly solicit, recruit, hire, or engage — outside of the WOML platform — any Lead Provider whose relationship with your business was initiated through or facilitated by the WOML platform.

- You may not use information about Providers obtained through the WOML platform to build a competing lead channel, direct relationship, or parallel pipeline that bypasses WOML's platform infrastructure.
- You may not offer, encourage, or incentivize any Provider connected through WOML to terminate their WOML participation in favor of a direct relationship with your business.

This clause does not prevent you from hiring a Provider who independently approaches you through a channel completely unrelated to WOML, provided no WOML-facilitated relationship or data was involved in that contact.

12. Force Majeure

WOML LLC shall not be liable for any delay or failure in performance resulting from causes beyond its reasonable control, including but not limited to: acts of God, natural disasters, pandemic, government action, civil unrest, cyberattack, power failure, internet outage, or failure of third-party services including Stripe Connect or Twilio. WOML will make reasonable efforts to restore service and notify affected businesses promptly.

13. General Provisions

13.1 Entire Agreement

This Agreement, together with the Deal Terms configured in your channel at account setup, constitutes the entire agreement between you and WOML LLC with respect to your use of the platform. In the event of a conflict between this Agreement and your Deal Terms, this Agreement controls unless a written amendment signed by WOML LLC expressly states otherwise.

13.2 Modifications

WOML LLC may update these terms at any time. Continued use of the platform after the notice period constitutes acceptance. Material changes will be communicated via email to your registered address with at least 30 days advance notice.

13.3 Severability

If any provision of this Agreement is found to be unenforceable, that provision shall be limited to the minimum extent necessary so that the Agreement otherwise remains in full force and effect.

13.4 No Waiver

WOML's failure to enforce any provision of this Agreement shall not constitute a waiver of its right to enforce that provision in the future.

13.5 Assignment

You may not assign or transfer your rights or obligations under this Agreement without WOML's prior written consent. WOML may assign this Agreement in connection with a merger, acquisition, or sale of substantially all of its assets.

13.6 SMS Communications & TCPA Consent

By providing a phone number during account creation, you expressly consent to receive SMS text messages from WOML LLC regarding your account, platform updates, payment notifications, and lead channel activity. Message and data rates may apply. This consent is not a condition of platform access or account approval. You may opt out of SMS communications at any time by replying STOP to any message or by contacting support@womleads.com. WOML will not send marketing SMS without your separate consent.

13.7 Platform as Technology Intermediary

WOML LLC is a technology platform and digital marketplace intermediary. WOML is not an insurance agency, broker, or licensed insurance professional. WOML does not sell, recommend, or advise on insurance products. The fact that lead data submitted through the platform may relate to insurance products is incidental to WOML's role as a technology platform connecting buyers and sellers of lead data.

Business Acceptance Checklist

By completing account creation on womleads.com, you confirm that you have read, understood, and agree to each of the following:

- 1 I confirm that I am authorized to enter into this Agreement on behalf of my business and that all information provided during account creation is accurate.
- 2 I understand and accept WOML's platform fee structure, including the right to modify fees with 30 days notice (Section 2.1).
- 3 I authorize WOML to charge my linked payment method for lead transactions in accordance with my configured payout rate and payment timing (Section 2.2).
- 4 I acknowledge that WOML reserves the right to introduce a monthly subscription fee with 30 days advance notice, and I accept this as a condition of platform access (Section 2.3).
- 5 I understand the 5-day lead dispute window and that WOML makes the final determination on all disputes (Section 3.2).
- 6 I acknowledge that all transactional and operational data generated through my use of the platform is the property of WOML LLC (Section 4.2).
- 7 I consent to the collection, aggregation, and commercial licensing of anonymized platform intelligence as described in Section 4.3, including its potential sale to third parties.
- 8 I agree to the confidentiality obligations in Section 5 and understand that breach entitles WOML to seek injunctive relief.
- 9 I agree to binding arbitration and waive my right to participate in any class action against WOML LLC in any representative capacity (Section 9).
- 10 I acknowledge that WOML retains sole ownership of the platform and that I receive only a limited license to use it (Section 10).
- 11 I agree to the non-solicitation and non-circumvention obligations in Section 11, including the 18-month post-termination restriction.
- 12 I consent to receive SMS communications from WOML LLC regarding my account and platform activity, and I understand I may opt out at any time (Section 13.6).
- 13 I confirm that my use of WOML complies with all applicable laws in my jurisdiction, including any insurance, consumer protection, or data privacy regulations applicable to my business (Section 6).

Accepted electronically upon account creation at womleads.com. Your IP address, device, and timestamp are recorded at the time of acceptance.